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12/30/13 K. McCutcheon, Dpty Clerk

PAULA S.O'NEIL,Ph.D.PASCO CLERK & COMPTROLLER
12/30/13 08:52am 1 of 8
OR BK 8976 PG 494

THE BOARD OF COUNTY COMMISSIONERS **RESOLUTION NO.** 13-297

A RESOLUTION AMENDING RESOLUTION NO. 05-136, AS AMENDED FOR MEADOW POINTE (F.K.A. TROUT CREEK) DEVELOPMENT OF REGIONAL IMPACT NO. 211 TO ALLOW FOR AN EXTERNAL ACCESS POINT TO TRACT 2 AND RECOGNIZE BUILDLOUT AND EXPIRATION DATE EXTENSIONS

WHEREAS, on October 9, 1973, the Pasco County Board of County Commissioners adopted by resolution a Development of Regional Impact (DRI) Development Order (DO) approving, with conditions, the Deerfield Village DRI; and,

WHEREAS, the DO was amended by the Board of County Commissioners by Resolution No. 89-10 dated October 11, 1988; Resolution No. 89-29 dated November 15, 1988; Resolution No. 89-69 dated January 4, 1989, rescinding Resolution Nos. 89-10 and 89-29; Resolution No. 90-32, a Substantial Deviation DO approved on November 21, 1989; Resolution No. 92-50 dated November 12, 1991; Resolution No. 97-98 dated December 10,1996; and Resolution 98-91 dated February 10,1998; Resolution 05-136 dated March 8, 2005; and

WHEREAS, on March 7, 2013 MPBBD, LLC, filed a request for an amendment to the Development Order Amendment pursuant to Section 380.06(19)(e)(2)(k), Florida Statutes, requesting: (1) removal of Condition No. 6 from Resolution 92-50 which limits all commercial parcels to internal accesses; and (2) recognize applicable date extensions granted in 2012; and

WHEREAS, the Planning and Development staff recommends amendment of Condition No. 6 to allow a right-in/right-out access from Bruce B. Downs Boulevard; and

WHEREAS, the Applicant provided notice of its intent to exercise the tolling and extension pursuant to the Governor's Executive Order 12-140 (as extended by Executive order 12-192 and 12-217) and 12-199; and

WHEREAS, the Florida Department of Economic Opportunity determined that the tolling and extension period shall be one (1) year and 120 days; and

WHEREAS, the Applicant wishes to recognize the new build-out date and DO expiration dates of March 13, 2019 and March 13, 2022, respectively; and

WHEREAS, the Pasco County Board of County Commissioners as the governing body of the local government having jurisdiction pursuant to Chapter 380, Florida Statutes, is authorized and empowered to consider amendments to the DRI DOs; and

WHEREAS, the traffic analysis prepared in 1996 did analyze an access between Meadow Point (now Aronwood Boulevard) and Williamsburg Drive, which was not considered in

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subsequent DO Amendments, and the Florida Department of Economic Opportunity and the Tampa Bay Regional Planning Commission recognize the access should have been considered; and

WHEREAS, pursuant to Subparagraph 380.06(19)(e)2, Florida Statutes, a notice of proposed change application and public hearing are not required in order for the Board of County Commissioners to consider this DO amendment; and

WHEREAS, the Board of County Commissioners considered the DO Amendment at its meeting on September 10, 2013; and

WHEREAS, the Board of County Commissioners has reviewed the DO Amendment as well as all related testimony and evidence submitted; and

WHEREAS, the Board of County Commissioners wishes at this time to amend the DO.

NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners of Pasco County, Florida, in regular session duly assembled this 10th day of September, 2013, that the DO Amendment for Meadow Pointe DRI as set forth below is hereby adopted by the Board of County Commissioners:

MEADOW POINTE DEVELOPMENT ORDER AMENDMENT

1. INTRODUCTION

This resolution shall constitute an amendment to the DO as previously amended.

2. FINDINGS OF FACT

a. The foregoing whereas clauses are hereby incorporated as Findings of Fact.

b. The Board of County Commissioners has received and considered various other reports and information including, but not limited to, the memoranda and attachments from the Planning and Development Department relating to this DO Amendment.

c. All parties were afforded the opportunity to present evidence and argument on all issues and submit rebuttal evidence.

d. The Development Order Amendment Application is incorporated into this DO by reference as Exhibit A.

3. CONCLUSIONS OF LAW

a. This DO Amendment is consistent with the applicable provisions of the Pasco County Land Development Code.

b. The DO Amendment is consistent with the applicable provisions of the adopted Pasco County Comprehensive Plan.

c. This DO Amendment is consistent with the applicable provisions of the State Comprehensive Plan.

d. This DO Amendment is not subject to a Notice of Proposed Change or additional regional review pursuant to Chapter 380, Florida Statutes.

4. ORDERED

Having made the above findings of fact and conclusions of law, the Meadow Pointe DO is hereby amended as follows:

a. The DO is hereby amended to change the build-out date from November 13, 2017 to March 13, 2019 and the DO expiration date from November 13, 2020 to March 13, 2022.

b. Condition No. 6 of Resolution 92-50 amending the DO is hereby amended as shown below in strikethrough/underline format.

6. All commercial parcels shall be limited to internal accesses~~,~~ except as provided below:

a) Access to Tract 1 may have full access from C.R. 581 provided the developer obtains a permit for a median cut.

b) Tract 2 may have a right-in/right-out access from C.R. 581, subject to County approval. However, any approved right-in/right-out access shall be modified or removed if required for all other developments that have access to C.R. 581 during the implementation of transit plans for the corridor such as the on-going FDOT/TBARTA "USF to Wesley Chapel Regional Transit

Study" or any other future transit studies for the corridor.

c. Except as specifically amended hereby, the provisions of the DO as amended, remain in full force and effect.

5. EFFECTIVE DATE

This DO Amendment shall take effect upon transmittal to the Florida Department of Economic Opportunity (FDEO), the Tampa Bay Regional Planning Council (TBRPC), and the Applicant. The effectiveness of this DO Amendment shall be stayed by the filing of a notice of appeal pursuant to Section 380.07, Florida Statutes.

6. PROCEDURES

a. A Notice of Adoption of this Resolution shall be filed and recorded in the Public Record of Pasco County, Florida, in accordance with Section 380.06(14)(a), Florida Statutes, as amended.

b. The Clerk of the Board of County Commissioners shall return four (4) signed originals of this DO Amendment and one (1) signed original Notice of Adoption to the Pasco County Planning & Development Department. The Pasco County Planning and Development Department shall then send copies of each document to the FDEO, TBRPC, and to attorneys of record in these proceedings.

c. This DO Amendment shall be deemed rendered upon transmittal of copies to all recipients identified in Chapter 380, Florida Statutes.

7. SEVERABILITY

Each provision of this DO is material to the Board of County Commissioners approval of this DO. Accordingly, the provisions are not severable. In the event any section, subsection, sentence, clause, or provision of this resolution is declared illegal or invalid by a body with jurisdiction to make such determination, the remainder of the resolution shall be suspended until such time that the Board of County Commissioners modifies the DO to address the illegal or invalid provision; provided, however, that such suspension shall not exceed nine (9) months in duration and such determination shall not affect the validity of 1) Limited exemption entitlements or DRI entitlements for which a complete application has been submitted, or approval has been received, for a preliminary plan, preliminary site plan, plat, construction plan, Building Permit, or CO; or 2) any DRI mitigation committed to or performed as of the date the determination is made.

Notwithstanding the foregoing, the resolution shall not be suspended if the Applicant/Developer and all affected successors or assigns agree to abide by all of the provisions of the resolution until an NOPC is adopted to modify the DO in order to address the illegal or invalid provision. NOPCs to the DO shall not be considered challenges to the DO, and decisions by the Board of County Commissioners regarding any NOPC or the like shall not have the effect of suspending the DO under any circumstances. Notwithstanding the foregoing, if a third party challenges any section, subsection, sentence, clause, or provision of this resolution and the challenged portion of the resolution is subsequently declared illegal or invalid, the resolution shall not be suspended and shall remain in full force and effect except for that portion declared illegal or invalid. If any section, subsection, sentence, clause, or provision of this resolution is declared illegal or invalid as the result of a third party challenge, the Applicant/Developer shall cooperate with the County to amend this resolution to address the portion which has been declared invalid or illegal.

DONE AND RESOLVED this 10th day of September, 2013

(SEAL)
ATTEST:

PAULA S. O'NEIL, Ph.D.
CLERK AND COMPTROLLER

BOARD OF COUNTY COMMISSIONERS OF
PASCO COUNTY, FLORIDA

THEODORE J. SCHRADER, CHAIRMAN

APPROVED
IN SESSION
SEP 10 2013
PASCO COUNTY
BCC

EXHIBITS

A. Development Order Amendment Application*

B. Legal Description

* incorporated by reference only and on file with the Planning and Development Department

EXHIBIT A

DEVELOPMENT ORDER AMENDMENT APPLICATION*

RECEIVED MARCH 15, 2013

***INCORPORATED BY REFERENCE ONLY AND ON FILE WITH THE PLANNING AND DEVELOPMENT DEPARTMENT**

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EXHIBIT B

LEGAL DESCRIPTION